

PERFORMANCE WORK STATEMENT (PWS)

Fire System Certification IDIQ

PART 1

GENERAL INFORMATION

1. **GENERAL:** This is a non-personnel services contract to provide the annual servicing to the onboard fire suppression system on the four 25Ton Kone Portal Cranes (Crane 51, 52, 53, 54). The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government.

1.1 Description of Services/Introduction: The contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform the annual and 5-year services of the Kidde (CO2) Aegis 2.0 Fire Suppression System as defined in this Performance Work Statement except for those items specified as government furnished property and services. The contractor shall perform to the standards in this contract.

1.2 Background: Per fire code, the permanent fire suppression system on the 25T Portal Cranes needs annual servicing.

1.3 Objectives: The contractor shall provide inspection, certification, and maintenance services under a task order described in Part 5, Specific Tasks, on the Kidde (CO2) Aegis 2.0 Fire Suppression System.

1.4 Scope: Inspect, clean, and test the fire suppression system. Services include providing final test report and completion of repairs upon government approval.

1.5 Period of Performance: The ordering period for the contract will be 5 years from date of award. The individual period of performance per task order in which inspection and certification will take place within the calendar year from date of award to perform.

1.6 Quality Assurance: The government shall evaluate the contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan. This plan is primarily focused on what the Government must do to ensure that the contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s).

1.7 Location:

1.7.1 Place of Performance: The work to be performed under this contract will be performed within the Controlled Industrial Area at PSNS (Puget Sound Naval Shipyard) and the Delta Pier at IMF (Intermediate Maintenance Facility).

1.7.2 Hours of Operation: The contractor is responsible for conducting business, between the hours of 0600 - 1530 Monday thru Friday except Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. For other than firm fixed price contracts, the contractor will not be reimbursed when the government facility is closed for the above reasons. The Contractor must at all times maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce are essential.

1.7.3 Recognized Holidays:

New Year's Day

Labor Day

Martin Luther King Jr.'s Birthday
President's Day
Memorial Day
Independence Day
Juneteenth Day

Columbus Day
Veteran's Day
Thanksgiving Day
Christmas Day

1.7.4 Type of Contract: The government will award an IDIQ contract for a period of 5 years.

1.8 Security Requirements: Contractor personnel performing work under this contract must have a security clearance following the instructions below at time of the proposal submission, and must maintain the level of security required for the life of the contract. The security requirements are in accordance with the attached DD254 (The unit security monitor is responsible for initiating this form).

- a) Green Badge access required. Contractor and Subcontractor's employees must be U.S. citizens. Green badge access to PSNS Controlled Industrial Area (CIA) will need to present Proof of Citizenship (current passport or birth certificate with raised seal) before being issued access badge.
- b) All references and deliverable items associated with this task are unclassified.
- c) Contractors will require access to PSNS & IMF CIA.
- d) Contractors must possess either a DOD-issued Common Access Card (CAC) or a Navy Commercial Access Control System (NCACS) "RAPID Gate" card to access Naval Base Kitsap-Bremerton. Contractor may obtain daily passes directly from the individual Navy Installations by completing a Department of the Navy Local Population ID Card/Base Access Pass registration (SECNAV 5512/1), submitting identification credentials for verification, undergo a National Crime Information Center (NCIC) Screening/background check, and be sponsored by a Government employee. Alternatively, if the contractor so chooses, they may voluntarily elect to obtain long-term credentials through enrollment registration, background vetting, screening, issuance of credentials, through a designated independent contractor NCACS service provider.

NCACS (RAPIDGate) Program Pass <http://eidpassport.com/products/government/rapidgate>

Additional info:

Email: info@eidpassport.com

Phone: Toll Free 1-855-243-8343

Local: 1-503-924-5300

****NOTE**** If a contractor has a past gross misdemeanor or felony in the past ten years, he/she may not be granted access to Naval Base – Kitsap.

PHONE and COMPUTER INFORMATION: Contractor electronic devices, including cell phones and computers shall not be capable of photography or digital recording. All cameras being brought into the controlled industrial area (CIA) area are required to have a camera permit (or equipment pass) and the operators attend training. Provide Make, Model, Serial Number, point of contact (POC) and POC phone number, purpose of device, time frame(s) for the use and provide to COR/ACOR prior to 5 working days before arrival onsite at PSNS. COR/ACOR will forward information to the C/1121 for planning when the operator and device will arrive. THE CAMERA CANNOT BE BROUGHT INSIDE CIA UNTIL A PASS IS IN HAND. The operator(s) of the camera will receive training by C/1121 personnel and receive training and then be issued a pass. Ships security department will also have to assess and approve the use of an infrared camera prior to allowing the camera shipboard. All approved photography taken inside the propulsion plant is required to be reviewed and approved for removal by a designated Reactor Department representative.

LAPTOP INFORMATION: All laptops prior being brought into the CIA require an approved Automated Information System (AIS) form (PSNS&IMFINST 5239.2) and cannot have a functional camera. If the laptop has a camera it must be modified by drilling or removing then filling with two-part permanent non-see thru epoxy prior to arrival. Provide COR/ACOR with completed AIS form and they will forward to C/109 and coordinate an appointment date for the arrival of laptop in advance. All laptop(s) will be inspected and AIS form approved at Bldg. 943 by C/109 IT security (located inside Naval Station).

Contractor Employees, in order to gain access to the government facility identified in paragraph 1.7.1 to perform work under this contract, shall at a minimum be an American citizen and make available to the security office two forms of identification in timely manner in order to gain proper badging. Contractor must follow PSNS & IMF CIA procedures and policies that are required to obtain personnel badges and/or vehicle access to the job location prior to the performance of the contract.

1.8.1 Physical Security: The contractor shall be responsible for safeguarding all government equipment, information and property provided for contractor use. At the close of each work period, government facilities, equipment, and materials shall be secured.

1.9 Special Qualifications: Contractor must have the ability and certifications NICET II or ESA/NTS Certified Fire Alarm Technician (CFAT) Level II Fire in fire alarms. The contractor must be qualified per NFPA 12 & 72 (National Fire Protection Association) as outlined by WAC 51-54A-0907. to test the unit fully described in Part 5, Specific Tasks

1.10 Post Award Conference/Periodic Progress Meetings: The Contractor agrees to attend any post award conference convened by the contracting activity or contract administration office in accordance with Federal Acquisition Regulation Subpart 42.5. The contracting officer, Contracting Officers Representative (COR), and other Government personnel, as appropriate, may meet periodically with the contractor to review the contractor's performance. At these meetings the contracting officer will apprise the contractor of how the government views the contractor's performance and the contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the government.

1.11 Contracting Officer Representative (COR): The (COR) will be identified by separate letter. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; issue written interpretations of technical requirements, including Government drawings, designs, specifications; monitor Contractor's performance and notifies both the Contracting Officer and Contractor of any deficiencies; coordinate availability of government furnished property, and provide site entry of Contractor personnel. A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting order.

The COR is NOT authorized to change any of the terms and conditions of this contract. **Only the warranted Contracting Officer is authorized to make modifications/changes to the terms and conditions of this contract.** If the contractor believes any Government personnel has effectively issued a change resulting in a change in effort and price/cost of the contract, the Contractor shall immediately notify the Contracting Officer.

CORS: PRIMARY
Ryan Harrison
Ryan.c.harrison3.civ@us.navy.mil
360-476-9711

1.11.1 Government Technical Points of Contact (TA/TPOC):

The TA/TPOC(s) are responsible for monitoring all technical aspects of the contract and assisting with contract administration. They are authorized to perform these duties after being appointed by the COR and having a signed TA form on file. Their responsibilities include ensuring the Contractor meets the technical requirements, helping with inspections related to contract performance, maintaining written and oral communication with the COR about technical matters, issuing written interpretations of technical

requirements such as government drawings, designs, and specifications, assisting in monitoring the Contractor's performance and reporting any deficiencies to the COR, coordinating the availability of government-furnished property, and helping to facilitate site access for Contractor personnel.

The TA/POC(s) are NOT authorized to change any of the terms and conditions of this contract. If the contractor believes any Government Personnel has effectively issued a change resulting in a change in effort and price/cost of the contract, the Contractor shall immediately notify the COR or Contracting Officer.

POC: Clark Cagle. Phone 360-396-5076. clark.c.cagle.civ@us.navy.mil

1.12 Key Personnel: The contract manager is considered key personnel by the government. The contractor shall provide a contract manager who shall be responsible for the performance of the work. The name of this person and an alternate who shall act for the contractor when the manager is absent shall be designated in writing to the contracting officer. The contract manager or alternate shall have full authority to act for the contractor on all contract matters relating to daily operation of this contract. The contract manager or alternate shall be available between 6:00 a.m. to 3:30p.m., Monday thru Friday except Federal holidays or when the government facility is closed for administrative reasons.

1.12.1 Identification of Contractor Employees: All contract personnel attending meetings, answering Government telephones, and working in other situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression in the minds of members of the public that they are Government officials. They must also ensure that all documents or reports produced by contractors are suitably marked as contractor products or that contractor participation is appropriately disclosed. Contractor personnel will be required to obtain and wear badges in the performance of this service.

1.13 Data Rights: The Government has unlimited rights to all documents/material produced under this contract. All documents and materials, to include the source codes of any software, produced under this contract shall be Government owned and are the property of the Government with all rights and privileges of ownership/copyright belonging exclusively to the Government. These documents and materials may not be used or sold by the contractor without written permission from the Contracting Officer. All materials supplied to the Government shall be the sole property of the Government and may not be used for any other purpose. This right does not abrogate any other Government rights.

1.14 Organizational Conflict of Interest: Contractor and subcontractor personnel performing work under this contract may receive, have access to or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.) or perform evaluation services which may create a current or subsequent Organizational Conflict of Interests (OCI) as defined in FAR Subpart 9.5. The Contractor shall notify the Contracting Officer immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the Contracting Officer to avoid or mitigate any such OCI. The Contractor's mitigation plan will be determined to be acceptable solely at the discretion of the Contracting Officer and in the event the Contracting Officer unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the Contracting Officer may effect other remedies as he or she deems necessary, including prohibiting the Contractor from participation in subsequent contracted requirements which may be affected by the OCI.

PART 2 DEFINITIONS & ACRONYMS

2. DEFINITIONS AND ACRONYMS:

2.1. DEFINITIONS:

2.1.1. **CONTRACTOR.** A supplier or vendor awarded a contract to provide specific supplies or service to the government. The term used in this contract refers to the prime.

2.1.2. **CONTRACTING OFFICER.** A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the government. Note: The only individual who can legally bind the government.

2.1.3. **CONTRACTING OFFICER'S REPRESENTATIVE (COR).** An employee of the U.S. Government appointed by the contracting officer to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

2.1.4. **DEFECTIVE SERVICE.** A service output that does not meet the standard of performance associated with the Performance Work Statement.

2.1.5. **DELIVERABLE.** Anything that can be physically delivered, but may include non-manufactured things such as meeting minutes or reports.

2.1.6. **KEY PERSONNEL.** Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

2.1.7. **PHYSICAL SECURITY.** Actions that prevent the loss or damage of Government property.

2.1.8. **QUALITY ASSURANCE.** The government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

2.1.9. **QUALITY ASSURANCE Surveillance Plan (QASP).** An organized written document specifying the surveillance methodology to be used for surveillance of contractor performance.

2.1.10. **QUALITY CONTROL.** All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

2.1.11. **SUBCONTRACTOR.** One that enters into a contract with a prime contractor. The Government does not have privity of contract with the subcontractor.

2.1.12. **WORK DAY.** The number of hours per day the Contractor provides services in accordance with the contract.

2.1.12. **WORK WEEK.** Monday through Friday, unless specified otherwise.

2.2. ACRONYMS:

ACOR	Alternate Contracting Officer's Representative
AFARS	Army Federal Acquisition Regulation Supplement
AR	Army Regulation
CCE	Contracting Center of Excellence
CFR	Code of Federal Regulations
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer Representative
COTR	Contracting Officer's Technical Representative
COTS	Commercial-Off-the-Shelf

DA	Department of the Army
DD250	Department of Defense Form 250 (Receiving Report)
DD254	Department of Defense Contract Security Requirement List
DFARS	Defense Federal Acquisition Regulation Supplement
DMDC	Defense Manpower Data Center
DOD	Department of Defense
FAR	Federal Acquisition Regulation
HIPAA	Health Insurance Portability and Accountability Act of 1996
KO	Contracting Officer
OCI	Organizational Conflict of Interest
OCONUS	Outside Continental United States (includes Alaska and Hawaii)
ODC	Other Direct Costs
PIPO	Phase In/Phase Out
POC	Point of Contact
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
TE	Technical Exhibit

PART 3

GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

3. GOVERNMENT FURNISHED ITEMS AND SERVICES:

3.1 Utilities: The Government will provide air hook ups, power hook ups, and the crane. If utilities are furnished, the following is required: The Contractor shall instruct employees in utilities conservation practices. The contractor shall be responsible for operating under conditions that preclude the waste of utilities, which include turning off the water faucets or valves after using the required amount to accomplish cleaning vehicles and equipment.

PART 4

CONTRACTOR FURNISHED ITEMS AND SERVICES

4. CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES:

4.1 General: The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract that are not listed under Section 3 of this PWS.

4.2. Materials: The Contractor shall furnish their own tools, test equipment, and ancillary equipment needed to complete the work described in Part 5.

PART 5

SPECIFIC TASKS

5. SPECIFIC TASKS:

5.1. **Basic Services:** The contractor shall provide services for inspection, testing, and certification of the fire suppression system indicated on the task orders. All inspection, testing, maintenance and programming shall be completed by a NICET II or ESA/NTS Certified Fire Alarm Technician (CFAT) Level II Fire in fire alarms. The contractor must be qualified per NFPA 12 & 72 (National Fire Protection Association) as outlined by WAC 51-54A-0907. The contractor must be authorized to inspect, maintenance and service Kidde Fire Suppression Systems.

5.2. Task Heading:

5.2.1 Crane 51, Crane 52, Crane 53, Crane 54 Annual Inspections

- A. Perform annual inspection, maintenance, service with the intention of certification of the fire suppression systems Kidde (CO2) Aegis 2.0 Fire Suppression System on the crane.
To include
 - a. Control Panel
 - b. Detection
 - c. Cylinder and Piping
 - d. Extinguishers
 - e. Check Battery Voltage/Transfer Standby Power
 - f. Test Monitoring
 - g. Test and Inspection Forms
- B. Submit findings to PSNS, and any recommendations for repair.

C. Do not repair these items unless approved in writing by contracting officer.

5.2.2 Perform 5 Year cylinder inspection and hydrostatic testing of hoses on Crane 51, Crane 52, Crane 53, and Crane 54.

- A. Submit findings to PSNS, and any recommendations for repair.
- B. Do not repair these items unless approved in writing by contracting officer.**

PART 6 APPLICABLE PUBLICATIONS

6. APPLICABLE PUBLICATIONS (CURRENT EDITIONS):

6.1. The Contractor must abide by all applicable regulations, publications, manuals, and local policies and procedures.

PART 7 ATTACHMENT/TECHNICAL EXHIBIT LISTING

7. ATTACHMENT/TECHNICAL EXHIBIT LIST:

7.1 Attachment 1/Technical Exhibit 1 – Performance Requirements Summary:

7.2. Attachment 2/Technical Exhibit 2 – Deliverables Schedule:

TECHNICAL EXHIBIT 1

Performance Requirements Summary

The contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Performance Objective (The Service required—usually a shall statement)	Standard	Performance Threshold (This is the maximum error rate. It could possibly be “Zero deviation from standard”)	Method of Surveillance
PRS # 1. The contractor shall provide inspection servicing and certification of the following Part 5, Specific Tasks.	The contractor provided Inspection servicing and certification in accordance to current Washington State Fire Code.	Zero deviations from the standards	Contractor will provide assessment report to COR
PRS # 2 Contractor shall maintain close liaison and good communications with government.	Any problems or questions encountered by either party are addressed within 24 hours (1 business day).	N/A	Provide COR with written report of findings/discrepancies

TECHNICAL EXHIBIT 2

Deliverables Schedule

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
Condition found report of Fire Suppression System.	Report findings and replacement recommendations within 48 hours.	1	PDF	Contractor will provide assessment report to COR.
Test and report condition of final test.	1 Week after Completion.	1	PDF	Contractor will provide assessment report to COR.